

INSTRUMENT OF DIVISION

Ara G. Paul and Shirley W. Paul
Charitable Remainder Unitrust dated May 12, 2023

This Instrument of Division is entered into by John B. Paul and Lisa J. Paul, as co-trustees (each, a “Trustee” and collectively, the “Trustees”) of the Ara G. Paul and Shirley W. Paul Charitable Remainder Unitrust dated May 12, 2023 (the “Original Trust”). This Instrument of Division is acknowledged below by the Income Beneficiaries and the Charitable Remainder Beneficiaries (as each is defined in Article I, Paragraph 1, below), and the CRUT B Trustee (as defined in Article II, Paragraph 3, below).

ARTICLE I

Background and Purpose of Trust Division

1. *The Original Trust.* The Original Trust was established by Ara G. Paul and Shirley W. Paul as the Trustors on May 12, 2023 and provides income interests for the joint lifetimes of John B. Paul (“John”), born September 12, 1966, and Richard N. Paul (“Rich”), born December 5, 1968 (each, an “Income Beneficiary” and collectively, the “Income Beneficiaries”), with the remainder to three charitable organizations described in Internal Revenue Code (“IRC”) §170(b)(1)(A), 2055(a), and 2522(a) of the Internal Revenue Code of 1986 (the “Charitable Remainder Beneficiaries”), each entitled to an equal one-third (1/3) share of the charitable remainder. As of December 31, 2025, the Original Trust holds assets with an aggregate fair market value of approximately \$ (the “Trust Corpus”).

2. *NIMCRUT Status.* The Original Trust is a charitable remainder unitrust intended to qualify as such within the meaning of Rev. Proc 90-31 and IRC §664(d)(2). It is a “net income with makeup charitable remainder unitrust” (also known as a “NIMCRUT”) as defined in IRC §664(d)(3), providing for annual payments equal to the lesser of trust income or six percent (6%) of the net fair market value of its assets, valued annually, with “makeup” provisions. Article I, Paragraph B of the Original Trust provides that “in no event shall the unitrust amount exceed six percent (6%).” For actuarial and valuation purposes, and in accordance with Treas. Reg. §1.664-4(a)(3), the NIMCRUT is treated as a standard 6% charitable remainder unitrust.

3. *Authority for Trust Division.* The situs and governing law of administration of the Original Trust are in the State of Michigan, and MCL 700.7417 authorizes a trustee to divide a trust into two or more separate trusts if the resulting division “does not impair rights of any beneficiary or adversely affect achievement of the purposes of the trust.” In addition, pursuant to Article II, Paragraph A.5 of the Original Trust instrument, the Trustees have the power “[t]o make allocations, divisions, and distributions of trust property in cash or in kind, or partly in each; to allocate different kinds of disproportionate shares of property, or undivided interests in property among the beneficiaries or separate trusts; and to determine the value of any property so allocated, divided, or distributed.

4. *Purpose of Trust Division.* The Trustees desire to divide the Original Trust into two separate charitable remainder unitrusts, one for each Income Beneficiary, to facilitate separate administration and investment while preserving the actuarial value of each beneficiary's interest and maintaining qualification under IRC §664.

5. *Trust Division Consistent with the Trustors' Intent.* The Trustees hereby find that the division will not impair the rights of any beneficiary, will not adversely affect the charitable purposes of the Original Trust, and is consistent with the intent of the Trustors as expressed in the Original Trust instrument.

ARTICLE II Division of Original Trust

1. *Creation of Separate Trusts.* As of the Effective Date, the Original Trust is hereby divided into two separate charitable remainder unitrusts (each, a "Separate Trust" and collectively, the "Separate Trusts"), to be known as:

- Ara G. Paul and Shirley W. Paul Charitable Remainder Unitrust dated May 12, 2023 for the benefit of John B. Paul ("CRUT A")
- Ara G. Paul and Shirley W. Paul Charitable Remainder Unitrust dated May 12, 2023 for the benefit of Richard N. Paul ("CRUT B")

2. *Resignation of Trustees.* Pursuant to Article III, Paragraph B of the Original Trust instrument, a Trustee may resign at any time by giving prior written notice to the Income Beneficiaries. As of the Effective Date, (i) John B. Paul and Lisa B. Paul shall remain co-trustees of the Original Trust and of CRUT A, and (ii) the Trustees hereby resign as co-trustees of CRUT B. Rich's acknowledgement of this Instrument of Division shall constitute receipt of written notice of such resignation.

3. *Appointment of Trustee.* Pursuant to Article III, Paragraph C of the Original Trust instrument, John and Rich have the power, acting together, to "name a successor Trustee which shall be a bank or trust company." John and Rich hereby appoint BOK Financial, by and through its agent, Randy Kimmel, as the trustee of CRUT B (the "CRUT B Trustee"). The Trustees' acknowledgement of this Instrument of Division shall constitute receipt of written notice of such appointment. Randy Kimmel's acknowledgement of this Instrument of Division shall constitute acceptance on behalf of BOK of its appointment as the CRUT B Trustee.

4. *Successor Trusts to Original Trust.* Each Separate Trust shall be a successor to, and a continuation of, the Original Trust as to the portion of the Trust Corpus allocated to it. From and after the Effective Date, the Original Trust will be administered solely through the Separate Trusts, and no further administration shall occur under the name of the Original Trust except as may be required to (i) allocate assets to the Separate Trusts and (ii) complete reporting for the taxable year of division.

5. *Release of Trustees.* The undersigned hereby agree to release, indemnify, defend and hold harmless John B. Paul and Lisa J. Paul, in their capacities as Trustees of the Original Trust, from and against any and all actions, inactions, claims, causes of action, expenses, costs, or other liabilities that may have arisen, or may hereafter arise, out of or in connection with their service as co-trustees of the Original Trust.

ARTICLE III Terms of Separate Trusts

1. *Incorporation of Original Trust Terms.* Except as specifically modified in this Instrument of Division, each Separate Trust shall be administered in accordance with, and subject to, all of the terms and provisions of the Original Trust instrument, which is attached as Exhibit A and is hereby incorporated herein as though fully restated for each Separate Trust.

2. *Measuring Lives and Unitization.*

A. CRUT A shall be a charitable remainder unitrust paying the lesser of income or six percent (6%) of the annual fair market value of its assets, for the life of John, with the remainder at his death to the same Charitable Remainder Beneficiaries, in the same one-third (1/3) shares, as provided in the Original Trust instrument.

B. CRUT B shall be a charitable remainder unitrust paying the lesser of income or six percent (6%) of the annual fair market value of its assets, for the life of Rich, with the remainder at his death to the same Charitable Remainder Beneficiaries, in the same one-third (1/3) shares, as provided in the Original Trust instrument.

3. *Charitable Remainder Provisions.* Each Separate Trust shall continue to qualify as a charitable remainder unitrust under IRC §664(d)(2) and applicable Treasury Regulations.

ARTICLE IV Allocations of Assets and Liabilities

1. *Actuarial Basis for Allocation.* The Trustees have determined, based on the §7520 rate of 4.6% for December 2025, the 6% unitrust payout rate, and the ages of the Income Beneficiaries, and the applicable actuarial tables in IRS Publication 1457 (Table U(1)), that an allocation of approximately 49.6% of the Trust Corpus to CRUT A and approximately 50.4% of the Trust Corpus to CRUT B preserves the relative actuarial values of the respective interests of the Income Beneficiaries and complies with Rev. Rul. 2008-41 and related guidance.

2. *Allocation of Assets.* As of the Effective Date:
 - CRUT A shall receive approximately 49.6% of the Trust Corpus.
 - CRUT B shall receive approximately 50.4% of the Trust Corpus.
3. *Allocation of Liabilities.* Liabilities shall be allocated proportionally unless otherwise equitable.

ARTICLE V
Intent to Preserve Tax Qualification

1. *Compliance with §§ 664 and 7520.* The division described herein is intended to comply with IRC §664, §7520, Treas. Reg. §§1.664-1 through 1.664-4, and Rev. Rul. 2008-41.
2. *Nonrecognition of Gain.* The division described herein shall constitute a nonrecognition event for federal income tax purposes.

ARTICLE VI
Miscellaneous

1. *Governing Law.* This Instrument of Division was executed in the State of Michigan. The laws of the State of Michigan shall govern its validity and interpretation.
2. *Effective Date.* This Instrument of Division shall be effective as of the date on which it is fully executed (the “Effective Date”).

Signatures to Appear on the Following Page.

This Instrument of Division may be signed in counterparts and may be signed electronically. By signing below, the undersigned acknowledge and agree to the terms of this Instrument of Division.

John B. Paul
Co-Trustee and Income Beneficiary

Date: _____

Lisa J. Paul
Co-Trustee

Date: _____

Richard N. Paul
Income Beneficiary

Date: _____

BOK Financial
By: Randy Kimmel
CRUT B Trustee

Date: _____